BEFORE THE KANSAS WORKERS COMPENSATION APPEALS BOARD

CATHERINE KLINGSPORN	)	
Claimant	)	
V.	)	
	)	
FIRST STUDENT MANAGEMENT, LLC	)	CS-00-0057-621
Respondent	)	AP-00-0423-929
AND	)	
	)	
NEW HAMPSHIRE INSURANCE CO.	)	
Insurance Carrier	)	

ORDER

The respondent, First Student Management, LLC, and its insurance carrier, New Hampshire Insurance Company (First Student), through John Jurcyk, requested review of Administrative Law Judge Thomas Klein's October 31, 2018 Award. Gary Albin appeared for the claimant, Catherine Klingsporn (Klingsporn). The case has been placed on the summary docket for disposition without oral argument.

RECORD AND STIPULATIONS

The Board has considered the record and adopted the stipulations listed in the Award. The Board initially intended to hear oral argument on February 14, 2019. Prior to such time, the parties agreed that the judge should have considered the August 1, 2017 deposition of Peter V. Bieri, M.D., along with exhibits attached to such transcript.

ISSUE

For the purposes of this Order only, First Student argues the judge did not consider Dr. Bieri's opinions regarding Klingsporn's percentage of task loss.

The issue is: Should the Board remand this matter to the judge for consideration of the entire record, including Dr. Bieri's deposition testimony and exhibits?

FINDINGS OF FACT

The majority of the facts of this case are not germane to the present issue. Succinctly, Klingsporn secured Dr. Bieri's testimony by deposition on August 1, 2017. Exhibits were offered into evidence. For reasons unknown to the parties, the deposition and exhibits were not part of the judge's file.

The judge's ruling states the only opinion regarding Klingsporn's task loss came from Pedro Murati, M.D. However, Dr. Bieri provided a task loss opinion, as noted in Klingsporn's attorney's emailed submission statement dated January 3, 2018.

PRINCIPLES OF LAW, ANALYSIS AND CONCLUSIONS

K.S.A. 2014 Supp. 44-523(a) provides in part:

> The director, administrative law judge or board shall not be bound by technical rules of procedure, but shall give the parties reasonable opportunity to be heard and to present evidence, ensure the employee and the employer an expeditious hearing and act reasonably without partiality.

The Board adopts the parties' agreement that Dr. Bieri's testimony and exhibits attached to his deposition transcript should have been part of the original record. As such, the Board vacates the October 31, 2018 Award. Further, this matter is remanded to the judge for consideration of the entire record, including the evidence stemming from Dr. Bieri's deposition.

The parties are responsible for ensuring the judge receives Dr. Bieri's deposition transcript and exhibits. Oral argument scheduled for February 14, 2019, is postponed pending further proceedings.

AWARD

WHEREFORE, the Board vacates and remands the October 31, 2018 Award for the judge's consideration of the entire record, including the evidence stemming from Dr. Bieri's deposition.

IT IS SO ORDERED.

Dated this _____ day of January, 2019.

_____
BOARD MEMBER

_____
BOARD MEMBER

_____
BOARD MEMBER

ec: Gary Albin
John Jurcyk
Honorable Thomas Klein